



CHAPTER 24

An Act to extend the provisions of the Children and Young Persons Act, 1933, and the Children and Young Persons (Scotland) Act, 1937, with respect to escapes from the care of fit persons, from approved schools and from remand homes or special reception centres.

[15th March, 1956]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The powers conferred respectively by section eighty-five of the principal English Act and section eighty-nine of the principal Scottish Act (which relate to escapes from the care of fit persons) to apprehend without warrant and bring back a child or young person shall be exercisable as mentioned in the two next following subsections.

(2) The powers under subsection (1) of each of the said sections (which relate to a child or young person who runs away from a person to whose care he has been committed under the Act in question) shall in each case be exercisable—

- (a) where the child or young person is without lawful authority taken away, as well as where he runs away, from a person to whose care he has been committed; and
- (b) whether he was committed to the care of that person under the principal English Act or the principal Scottish Act; and
- (c) in any part of Great Britain.

11 & 12 Geo. 6.
c. 43.

(3) The powers under subsection (2) of each of the said sections (which relate to a child or young person who runs away from any person with whom he has been boarded out by a local authority under Part II of the Children Act, 1948) shall in each case be exercisable—

- (a) where the child or young person is without lawful authority taken away, as well as where he runs away; and
- (b) where he runs away, or is without lawful authority taken away, from any place at which accommodation has been provided for him under the said Part II, whether by boarding out or otherwise, by a local authority acting in the capacity of a fit person to whose care he has been committed under either of the principal Acts; and
- (c) in any part of Great Britain.

(4) Subsection (3) of each of the said sections (which relate to penalties) shall apply in each case to any person who—

- (a) knowingly assists or induces, or persistently attempts to induce, a child or young person to run away from a person to whose care he has been committed under either of the principal Acts or from a place at which accommodation has been provided for him as aforesaid; or
- (b) without lawful authority takes away a child or young person from such a person or such a place; or
- (c) knowingly harbours or conceals a child or young person who has so run away or has been so taken away, or prevents him from returning.

Escapes from
approved
schools.

2.—(1) Subsection (1) of section eighty-two of the principal English Act and subsection (1) of section eighty-six of the principal Scottish Act (which relate to escapes from approved schools) shall each apply in relation to an approved school within the meaning of either of those Acts; and the powers conferred by each of those subsections respectively to apprehend without warrant and bring back to his school and bring before a court of summary jurisdiction any person who has committed any such offence as is mentioned in that subsection shall be exercisable in any part of Great Britain:

Provided that where the school is situate in England or Wales and the offender is found in Scotland, or where the school is situate in Scotland and the offender is found in England or Wales, he shall only be brought before a court of summary jurisdiction having jurisdiction where his school is situate.

(2) Paragraph 13 of the Fourth Schedule to the principal English Act and paragraph 13 of the Second Schedule to the principal Scottish Act (which confer the powers, protection and

privileges of a constable on persons authorised to take charge of or apprehend, or to bring back or take to an approved school, a person ordered to be detained therein) shall each apply in relation to an approved school within the meaning of either of those Acts; and the said powers, protection and privileges shall be available in any part of Great Britain.

3.—(1) The powers conferred respectively by subsection (4) of section seventy-eight of the principal English Act and subsection (4) of section eighty-two of the principal Scottish Act to apprehend without warrant and bring back a child or young person who escapes from a remand home or, in the case of the principal English Act, from a special reception centre, shall in each case be exercisable—

- (a) where a child or young person is without lawful authority taken away, as well as where he escapes; and
- (b) in any part of Great Britain;

and a child or young person who has been committed to custody in a remand home (whether provided under section seventy-seven of the principal English Act or under section eighty-one of the principal Scottish Act) or in a special reception centre within the meaning of the principal English Act, shall, while being conveyed in any part of Great Britain to or from the remand home or special reception centre, be deemed to be in legal custody.

(2) The penalties provided by each respectively of the said subsections shall in each case be incurred by any person who—

- (a) knowingly assists or induces a child or young person to escape from a remand home provided under either of the principal Acts or from a special reception centre within the meaning of the principal English Act; or
- (b) without lawful authority takes away a child or young person from such a remand home or special reception centre; or
- (c) knowingly harbours or conceals a child or young person who has so escaped or has been so taken away, or prevents him from returning.

4.—(1) The principal English Act and the principal Scottish Act shall have effect subject to the amendments respectively specified in the Schedule to this Act, being amendments consequential on the foregoing provisions of this Act.

(2) So much of the Third Schedule to the Children Act, 1948, as amends section eighty-five of the principal English Act or section eighty-nine of the principal Scottish Act is hereby repealed.

Interpretation.

23 & 24 Geo. 5.
c. 12.

1 Edw. 8. &
1 Geo. 6. c. 37.

5.—(1) In this Act—

- (a) the expression “the principal English Act” means the Children and Young Persons Act, 1933;
(b) the expression “the principal Scottish Act” means the Children and Young Persons (Scotland) Act, 1937.

(2) Save in so far as the context otherwise requires, any reference in this Act to any other enactment shall be construed as a reference to that enactment as amended by or under any other enactment, including this Act.

**Short title,
citation,
extent and
commence-
ment.**

6.—(1) This Act may be cited as the Children and Young Persons Act, 1956.

(2) This Act and the Children and Young Persons Acts, 1933 to 1952, may be cited together as the Children and Young Persons Acts, 1933 to 1956.

(3) This Act and the Children and Young Persons (Scotland) Act, 1937, may be cited together as the Children and Young Persons (Scotland) Acts, 1937 and 1956.

(4) This Act shall not extend to Northern Ireland.

(5) This Act shall come into operation on the first day of October nineteen hundred and fifty-six.

SCHEDULE

Section 4.

CONSEQUENTIAL AMENDMENTS OF ENACTMENTS

The Children and Young Persons Act, 1933 (23 & 24 Geo. 5. c. 12)

1. For subsection (2) of section seventy-eight there shall be substituted the following:—

“(2) A child or young person while so detained, or while being conveyed to or from a remand home to custody in which he has been committed (including a remand home provided under section eighty-one of the Children and Young Persons (Scotland) Act, 1937), shall be deemed to be in legal custody.”

2. In subsection (4) of section seventy-eight for the words from the beginning to “returning” there shall be substituted the following:—

“(4) A child or young person who escapes or is without lawful authority taken away from a remand home (including a remand home provided under section eighty-one of the said Act of 1937) may be apprehended without warrant in any part of Great Britain, and brought back thereto, and any person who—

- (a) knowingly assists or induces a child or young person so to escape; or
- (b) without lawful authority so takes away a child or young person; or
- (c) knowingly harbours or conceals a child or young person who has so escaped or has been so taken away, or prevents him from returning.”

3. In subsection (1) of section eighty-two—

(a) after the words “approved school” there shall be inserted the words “within the meaning of this Act or of the Children and Young Persons (Scotland) Act, 1937”;

(b) after the word “warrant” there shall be inserted the words “in any part of Great Britain”;

(c) at the end of the subsection there shall be added the following:—

“Provided that where his school is situate in England or Wales and he is found in Scotland, or where his school is situate in Scotland and he is found in England or Wales, he shall only be brought before a court of summary jurisdiction having jurisdiction where his school is situate.”

4. In subsection (1) of section eighty-five—

(a) after the words “runs away” there shall be inserted the words “or is without lawful authority taken away”;

(b) after the word “Act” there shall be inserted the words “or under the Children and Young Persons (Scotland) Act, 1937”;

(c) after the word “warrant” there shall be inserted the words “in any part of Great Britain”;

(d) in paragraph (a), for the words "petty sessional court" there shall be substituted the words "court of summary jurisdiction";

(e) in paragraph (b), after the word "ran" there shall be inserted the words "or was taken".

5. For subsection (2) of section eighty-five there shall be substituted the following:—

"(2) A child or young person who runs away, or is without lawful authority taken away, from any place at which accommodation has been provided for him under Part II of the Children Act, 1948, whether by boarding out or otherwise, by a local authority acting in the capacity of a fit person to whose care he has been committed under this Act or under the Children and Young Persons (Scotland) Act, 1937, may be apprehended without warrant in any part of Great Britain and brought back to that place or to such other place or person as the local authority direct."

6. In subsection (3) of section eighty-five, for the words from "knowingly" to the end of paragraph (b) there shall be substituted the following:—

"(a) knowingly assists or induces, or persistently attempts to induce, a child or young person to run away from a person to whose care he has been committed as aforesaid or from a place at which accommodation has been provided for him as aforesaid; or

(b) without lawful authority takes away a child or young person from such a person or such a place; or

(c) knowingly harbours or conceals a child or young person who has so run away or has been so taken away, or prevents him from returning."

7. In paragraph 13 of the Fourth Schedule—

(a) after the words "approved school" in both places where they occur there shall be inserted the words "within the meaning of this Act or of the Children and Young Persons (Scotland) Act, 1937";

(b) at the end there shall be added the words "in any part of Great Britain".

Children and Young Persons (Scotland) Act, 1937
(1 Edw. 8. & 1 Geo. 6. c. 37)

8. For subsection (2) of section eighty-two there shall be substituted the following:—

"(2) A child or young person while so detained, or while being conveyed to or from a remand home (whether provided under the last foregoing section or under section seventy-seven of the Children and Young Persons Act, 1933) or special reception centre within the meaning of the said Act of 1933 to custody in which he has been committed, shall be deemed to be in legal custody."

9. In subsection (4) of section eighty-two for the words from the beginning to "returning" there shall be substituted the following:—

"(4) A child or young person who escapes or is without lawful authority taken away from a remand home (whether provided under the last foregoing section or under section seventy-seven of the said Act of 1933) or from a special reception centre within the meaning of the said Act of 1933, may be apprehended without warrant in any part of Great Britain, and brought back thereto, and any person who—

- (a) knowingly assists or induces a child or young person so to escape; or
- (b) without lawful authority so takes away a child or young person; or
- (c) knowingly harbours or conceals a child or young person who has so escaped or has been so taken away, or prevents him from returning".

10. In subsection (1) of section eighty-six—

(a) after the words "approved school" there shall be inserted the words "within the meaning of this Act or of the Children and Young Persons Act, 1933";

(b) after the word "warrant" there shall be inserted the words "in any part of Great Britain";

(c) at the end of the subsection there shall be added the following:—

"Provided that where his school is situate in England or Wales and he is found in Scotland, or where his school is situate in Scotland and he is found in England or Wales, he shall only be brought before a court of summary jurisdiction having jurisdiction where his school is situate."

11. In subsection (1) of section eighty-nine—

(a) after the words "runs away" there shall be inserted the words "or is without lawful authority taken away";

(b) after the word "Act" there shall be inserted the words "or under the Children and Young Persons Act, 1933";

(c) after the word "warrant" there shall be inserted the words "in any part of Great Britain";

(d) in paragraph (b), after the word "ran" there shall be inserted the words "or was taken".

12. For subsection (2) of section eighty-nine there shall be substituted the following:—

"(2) A child or young person who runs away, or is without lawful authority taken away, from any place at which accommodation has been provided for him under Part II of the Children Act, 1948, whether by boarding out or otherwise, by a local authority acting in the capacity of a fit person to whose care he has been committed under this Act or under the Children and Young Persons Act, 1933, may be apprehended without warrant in any part of Great Britain and brought back to that place or to such other place or person as the local authority direct."

13. In subsection (3) of section eighty-nine, for the words from "knowingly" to the end of paragraph (b) there shall be substituted the following:—

- "(a) knowingly assists or induces, or persistently attempts to induce, a child or young person to run away from a person to whose care he has been committed as aforesaid or from a place at which accommodation has been provided for him as aforesaid; or
- (b) without lawful authority takes away a child or young person from such a person or such a place; or
- (c) knowingly harbours or conceals a child or young person who has so run away or has been so taken away, or prevents him from returning."

14. In paragraph 13 of the Second Schedule—

- (a) after the words "approved school" in both places where they occur there shall be inserted the words "within the meaning of this Act or of the Children and Young Persons Act, 1933";
- (b) at the end there shall be added the words "in any part of Great Britain".

PRINTED BY JOHN ROUGHTON SIMPSON, C.B.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament
LONDON : PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 6d. net.

PRINTED IN GREAT BRITAIN

(37016)